THE NATIONAL COMPANY LAW TRIBUNAL
COURT - IV, NEW DELHI

COMPANY APPLICATION NO. CAA–36/ND/2020
CONNETED WITH
COMPANY APPLICATION NO. CA (CAA)-127/ND/2019

In the matter of Sections 230 to 232 and other relevant provisions of the Companies Act, 2013;

And

In the matter of Scheme of Amalgamation of

DAKSHNESHWAR INFRASTRUCTURE PRIVATE LIMITED

(Petitioner-1/Transferor Company 1)

AND

GOOD LUCK INFRAPROJECTS PRIVATE LIMITED

(Petitioner-2/Transferor Company 2)

AND

BRIDE & STYLE MAGAZINES PRIVATE LIMITED

(Petitioner-3/Transferor Company 3)

AND

RUN PROPERTIES
PRIVATE LIMITED

(Petitioner-4/Transferor Company 4)

AND

VNL TELESERVICES
PRIVATE LIMITED

(Petitioner-5/Transferor Company 5)

AND

INDIA MOBILITY RESEARCH
PRIVATE LIMITED

(Petitioner-6/Transferor Company 6)

AND

NMG PROJECTS
PRIVATE LIMITED

(Petitioner-7/Transferor Company 7)

AND

SKY ESTATES
PRIVATE LIMITED

(Petitioner-8/Transferor Company 8)

AND

CELLPASSION NETWORKS
PRIVATE LIMITED

(Petitioner-9/Transferor Company 9)

AND

STRAWBERRY FIELDS TELEVENTURES
PRIVATE LIMITED

(Petitioner-10/Transferee Company)

AND THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

CORAM:
DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

For the Petitioners : Mr. Ravi Sharma, Adv.

Order Pronounced on: 19.03.2020

MEMO OF PARTIES:

DAKSHNESHWAR INFRASTRUCTURE PRIVATE LIMITED (CIN-U45400DL2008PTC173366), is a private company incorporated on January 30, 2008 under the Companies Act, 1956 having its registered office at 258 Okhla Industrial Estate,
Phase-III, New Delhi- 110020.

Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-1/Transferor Company 1)

AND

GOOD LUCK INFRAPROJECTS PRIVATE LIMITED (CIN-U45400DL2008PTC181235), a private company incorporated on July 23, 2008 under the Companies Act, 1956 having its registered office at 258 Okhla Industrial Estate,
Phase-III, New Delhi- 110020.

Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-2/Transferor Company 2)

AND

BRIDE & STYLE MAGAZINES PRIVATE LIMITED (CIN-U22211DL2008PTC175683), a private company incorporated on March 20, 2008 under the Companies Act, 1956 having its registered office at A-165, Naraina Industrial Area, Phase-1, New Delhi-110028. Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-3/Transferor Company 3)

AND

RUN PROPERTIES PRIVATE LIMITED (CIN-U45400DL2008PTC174652), a private company incorporated on February 27, 2008 under the Companies Act, 1956 having its registered office at A-60, Naraina Industrial Area, Phase-1, New Delhi West Delhi DL-110028 IN
Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-4/Transferor Company 4)

AND

VNL TELESERVICES PRIVATE LIMITED (CIN-U64201DL2008PTC182242), a private company incorporated on

August 20, 2008 under the Companies Act, 1956 having its registered office at A-60, Naraina Industrial Area, Phase-1, New Delhi West Delhi DL-110028 IN
Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-5/Transferor Company 5)

AND

INDIA MOBILITY RESEARCH PRIVATE LIMITED (CIN-U64201DL2008PTC184310), a private company incorporated on October 16, 2008 under the Companies Act, 1956 having its registered office at A-60, Naraina Industrial Area, Phase-1, New Delhi West Delhi DL-110028 IN
Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-6/Transferor Company 6)

AND

NMG PROJECTS PRIVATE LIMITED (CIN-U45200DL2008PTC174920), a private company incorporated on March 05, 2008 under the Companies Act, 1956 having its registered office at A-60, Naraina Industrial Area, Phase-1, New Delhi West Delhi DL-110028 IN
Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-7/Transferor Company 7)

AND

SKY ESTATES PRIVATE LIMITED (CIN-U70101DL2009PTC187502), a private company incorporated on February 11, 2009 under the Companies Act, 1956 having its registered office at 258 Okhla Industrial Estate,
Phase-III, New Delhi- 110020.

Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-8/Transferor Company 8)

AND

CELLPASSION NETWORKS PRIVATE LIMITED (CIN-U64200DL2007PTC171061), a private company incorporated on December 14, 2007 under the Companies Act, 1956 having its registered office at A-165, Naraina Industrial Area, Phase-1, New Delhi-110028.
Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-9/Transferor Company 9)

AND

STRAWBERRY FIELDS TELEVENTURES PRIVATE LIMITED(CIN-U74999DL2007PTC162323), a private company incorporated on April 19, 2007 under the Companies Act, 1956 having its registered

office at A-60, Naraina Industrial Area, Phase-1, New Delhi West Delhi DL-110028 IN
Through its authorized signatory

Mr. Kishore Gogar

Email: kishoregogal@gmail.com

Telephone: 0124-7116700

(Petitioner-10/Transferee Company)

ORDER

PER- DR. DEEPTI MUKESH, MEMBER (TECHNICAL)

1. This petition has been filed on 10.02.2020 by the Petitioner Companies under Sections 230 to 232 of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 for the Scheme of Arrangement (for brevity Scheme) praying for fixing a date of hearing of the main Company Petition for approving the scheme of arrangement by way of amalgamation as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including regulators, if any.

2. It is seen from the records that the First Motion application seeking convening/dispensation from convening the meetings of Shareholders and Creditors of the petitioner companies was filed before this Bench vide Company Application CA(CAA)-127(ND)/2019. Based on such joint application moved under Sections 230-232 of the Companies Act, 2013, vide order dated 03.02.2020 passed by this Bench, following directions were issued: -

a) With respect to Transferor Company no. 1 meetings of the equity shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

b) With respect to Transferor Company no. 2 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

c) With respect to Transferor Company no. 3 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

d) With respect to Transferor Company no. 4 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

e) With respect to Transferor Company no. 5 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

f) With respect to Transferor Company no. 6 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

g) With respect to Transferor Company no. 7 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

h) With respect to Transferor Company no. 8 meetings of shareholders were dispensed with, there being no secured and unsecured Creditors.

i) With respect to Transferor Company no. 9 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

j) With respect to Transferee Company being petitioner no. 10 meetings of shareholders and unsecured Creditors were dispensed with, there being no secured Creditors.

3. Therefore, in the present second motion petition filed under Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016, the prayer for fixing a date of hearing as well as for other consequential directions is allowed with the following directions: -

(i) *The next date of hearing of the Petition shall be on* ***05.05.2020*** *for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.*

(ii) *Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.*

(iii) *In addition to the public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of*

Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax Department; through the Income Tax Cell at DCIT (High Court Cell) Lawyers Chamber, Block no. 1, Room no. 428 & 429, Delhi High Court, New Delhi, alongwith full details of Assessing Officer and PAN numbers of all the applicant companies (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who are likely to be affected by the Scheme at least 30 days before the date fixed for hearing of the above Petition. The said authorities are directed to send their representations if any, within 30 days from the date of receipt of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.

(iv) *Further, notices shall also be served to the Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Companies Act, 2013 who may have made representation and who have desired to be heard in their representation along with a copy of the Petition*

and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) *All the Petitioner companies shall at least 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulators as well as to the Objectors, if any.*

(vi) *Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.*

(vii) *The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the*

Companies Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the required certificate of Company's auditor.

(viii) *The petitioner companies shall file their respective up to date audited financial statements before next date of hearing on 05.05.2020.*

Let copy of the order be served to the parties.

Sd/-

(DR. DEEPTI MUKESH)
MEMBER (JUDICIAL)

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